

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOE AZAGURY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, JENNIFER BROWN,
JOHN DOE #1 and JOHN DOE #2,

Defendants.
-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer ,or if the complaint is not served with this summons, to appear in this action by serving a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

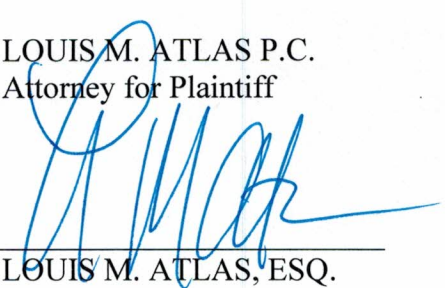
Dated: November 28, 2016

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

**NEW YORK CITY POLICE
DEPARTMENT**
1 Police Plaza
New York, New York 10007

LOUIS M. ATLAS P.C.
Attorney for Plaintiff

By: 

LOUIS M. ATLAS, ESQ.
260 Madison Avenue
New York, New York 10016
(212) 213-9666

Date Filed:

Index. No.

Plaintiff designates
New York County as
The place of trial

SUMMONS

The basis of venue
is place of occurrence

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
JOE AZAGURY ,

Index No.

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, JENNIFER
BROWN, JOHN DOE #1 and JOHN DOE #2,

Defendants.
-----X

Plaintiff, JOE AZAGURY, by his attorneys, Louis M. Atlas P.C., as and for his
Verified Complaint against the Defendants herein, respectfully sets forth and alleges as
follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK**, was and still is a municipal corporation organized and existing under and by virtue of the Laws of the State of New York.

2. That at all times herein mentioned, Plaintiff duly served a Notice of Claim and intention to commence an action thereupon ("Notice of Claim") on the Defendant **THE CITY OF NEW YORK** on the 25th day of March, 2016, within the time prescribed by law.

3. That Defendant **THE CITY OF NEW YORK** has neglected and refused to make an adjustment in payment thereof within thirty (30) days after service of the Notice of Claim.

4. That Plaintiff has duly complied with all statutes and laws applicable to the Defendant, **THE CITY OF NEW YORK**, precedent to the making of this claim and bringing this action.

5. That at all times herein mentioned, Defendant **THE NEW YORK CITY POLICE DEPARTMENT**, was and still is a department of and within a municipal corporation organized and existing under and by virtue of the Laws of the State of New York.

6. That at all times herein mentioned, Plaintiff duly served the Notice of Claim on the defendant **THE NEW YORK CITY POLICE DEPARTMENT** on the 25th day of March, 2016, within the time prescribed by law.

7. That Defendant **THE NEW YORK CITY POLICE DEPARTMENT** has neglected and refused to make an adjustment in payment thereof within thirty (30) days after service of said Notice of Claim.

8. That Plaintiff has duly complied with all statutes and laws applicable to the Defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, precedent to the making of this claim and bringing this action.

9. That at all times herein mentioned, Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT** employed, as members of its police department Defendants **JENNIFER BROWN, JOHN DOE #1 and JOHN DOE #2**.

10. On the 6th day of January, 2016, at 19 ½ Pitt Street, in the City, County and State of New York, the Defendants **THE CITY OF NEW YORK, THE NEW**

YORK CITY POLICE DEPARTMENT and Defendants **JENNIFER BROWN, JOHN DOE #1 AND JOHN DOE #2**, police officers in the employ of Defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, jointly and severally, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty without any warrant, order or other legal process and without any legal right.

11. On the 6th day of January, 2016, the Defendants **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT** and Defendants **JENNIFER BROWN, JOHN DOE #1 AND JOHN DOE #2**, police officers in the employ of Defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, jointly and severally, wrongfully and unlawfully arrested and/or imprisoned this plaintiff at 100 Centre Street, City, County and State of New York.

12. On the 6th day of January, 2016, the Defendants **THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT** and Defendants **JENNIFER BROWN, JOHN DOE #1 AND JOHN DOE #2**, police officers in the employ of Defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, wrongfully touched, assaulted and grabbed the person of the Plaintiff, causing him physical harm.

13. That Defendants arrested, assaulted, searched, seized, imprisoned, detained and incarcerated the Plaintiff without cause to do so.

14. As a result of these acts, the Plaintiff was greatly humiliated, subjected to physical and mental distress, was injured in his character and reputation and has suffered

severe and permanent injuries, both physical and psychological in nature.

15. That as a result of the foregoing, the plaintiff, **JOE AZAGURY**, has been damaged in an amount to be determined in excess of the jurisdiction of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs of this complaint numbered "1" through "14", inclusive, with the same force and effect as though the same were more fully set forth at length therein.

17. That the actions of these Defendants were unwarranted, willful and malicious without reason and/or provocation.

18. That subsequent to the above-mentioned events, the Defendants herein maliciously and deliberately prosecuted Plaintiff, fingerprinted and photographed Plaintiff, continued said prosecution against the Plaintiff, knowing said charges to be false.

19. The commencement and continuation of criminal proceedings was malicious and without probable cause.

20. The aforesaid criminal proceeding was ultimately dismissed.

21. That the said malicious prosecution, assault, battery, false imprisonment and false arrest were committed in violation of Plaintiff's rights under the Fourth Amendment, otherwise violated Plaintiff's civil and constitutional rights and deprived Plaintiff of his rights, privileges, and immunities afforded to him.

22. That as a result of the above actions of the Defendants, Plaintiff suffered personal injuries, was greatly humiliated, subjected to severe mental anguish and psychological trauma and was injured in his character and reputation.

23. That this action falls within one or more of the exceptions set forth in Section 1602 of the CPLR.

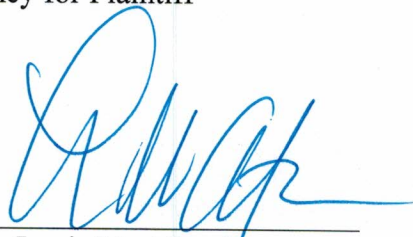
24. That as a result of the foregoing, the plaintiff, **JOE AZAGURY**, has been damaged in an amount to be determined in excess of the jurisdiction of all lower courts.

WHEREFORE, Plaintiff, **JOE AZAGURY**, demands judgment against Defendants on the FIRST CAUSE OF ACTION in an amount to be determined in excess of the jurisdiction of all lower courts, on the SECOND CAUSE OF ACTION in an amount to be determined in excess of the jurisdiction of all lower courts, together with the costs and disbursements of this action.

Dated: New York, New York
November 28, 2016

LOUIS M. ATLAS P.C.
Attorney for Plaintiff

By: _____



Louis M. Atlas, Esq.
260 Madison Avenue
New York, New York 10016
(212) 213-9666

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney admitted to practice in the Courts of New York State, and say that:

I am the attorney of record, or of counsel with the attorney(s) of record for plaintiff(s).

I have read the annexed Summons and Verified Complaint and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge is based upon the following:

Interviews and/or discussions with the plaintiff and papers and/or documents in the file.

The reason I make this affirmation instead of plaintiff is because said plaintiff resides outside of the county from where your deponent maintains his office for the practice of law.

Dated: New York, New York
November 28, 2016



LOUIS M. ATLAS, ESQ.
260 Madison Avenue
New York, New York 10016